



CHAPTER cxxii.

An Act to confirm a Scheme of the Charity Commissioners for the management of the Charity consisting of the Congregational Chapel in Caroline Street in the borough of Longton in the county of Stafford. A.D. 1907.
[9th August 1907.]

WHEREAS the Charity Commissioners for England and Wales in their report to His Majesty of their proceedings during the year one thousand nine hundred and six have reported that they have approved and certified a scheme for the management of the charity consisting of the Congregational Chapel in Caroline Street in the borough of Longton in the county of Stafford comprised in an indenture dated the twenty-fifth day of April one thousand eight hundred and twenty-five :

And whereas it is expedient that the scheme as the same is fully set out and defined in the schedule to this Act should be confirmed :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The said scheme is hereby confirmed Provided always Confirmation of scheme. that nothing in this Act or in the said scheme shall be held to interfere with the ordinary jurisdiction over endowed charities now exerciseable or hereafter to become exerciseable by the High Court of Justice and the Charity Commissioners.

2. This Act may be cited as the Longton Congregational Chapel in Caroline Street Scheme Confirmation Act 1907. Short title.

A.D. 1907.

SCHEDULE.

*Scheme for the Application or Management of the Charity
consisting of the Congregational Chapel in Caroline Street in the
Borough of Longton in the County of Stafford.*

1. The above-mentioned charity and the endowment thereof shall be administered and managed by the body called "the Staffordshire Congregational Union (Incorporated)" as the Trustees thereof subject to and in conformity with the provisions of this scheme.
2. The above-mentioned chapel with the appurtenances shall forthwith vest in the said body for all the estate and interest therein belonging to or held in trust for the charity.
3. The Trustees shall permit the buildings belonging to the charity to be used occupied and enjoyed as a place for the public worship of God and for preaching the Gospel of the Lord Jesus Christ according to the principles and usages of Protestants of the Congregational denomination commonly called Independents being Pædobaptists under the direction of the Christian Church for the time being assembling for worship in the said buildings and for the instruction of children and adults and for the promotion of such other charitable purposes whether religious or philanthropic as the said church shall from time to time direct.
4. The Trustees shall permit to officiate in the said buildings as stated minister or pastor of the said church such person or persons only as shall be of the denomination aforesaid and shall hold preach and maintain the doctrines set out in the schedule hereto and shall (except in the case of the present minister or pastor) be chosen and elected by a special resolution of the church and no person shall be permitted to officiate as minister or pastor in the said buildings who shall be guilty of immoral conduct or shall cease to be of the denomination aforesaid or shall cease to hold and preach any of the said doctrines or be removed from his office by a special resolution of the said church.
5. The Trustees shall permit such occasional ministers or other persons to officiate in the said buildings as the stated minister or pastor of the said church for the time being (if any) or if there be no such minister or pastor as the deacon or deacons of the said church for the time being or any committee from time to time appointed by the said church for the purpose shall appoint unless any such appointment shall be negatived by a resolution of the church.
6. The Trustees shall permit the deacon or deacons of the said church or other person or persons appointed for the purpose by the said church to receive all moneys contributed or subscribed and also the net rents arising

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from any lease of property of the charity and any other money which may come to the hands of the Trustees in connexion with the premises in the nature of income and after payment thereof of the expenses of repairing and insuring the premises and the interest of any mortgage or debt secured on the premises or incurred in the erection completion repair alteration enlargement or improvement of the said buildings and premises to pay such sum for the support of the minister or pastor of the said church as the said church shall have determined and to apply the remainder in payment of the incidental and other expenses attending the maintenance of divine worship on the said premises and for the other purposes of the charity as the said church shall direct. Provided nevertheless that moneys contributed or subscribed for any specified purpose shall not be subject to this clause but shall be applied for such specified purpose. A.D. 1907.

7. The Trustees shall from time to time under the direction of the church permit the buildings for the time being belonging to the charity to be repaired altered enlarged taken down and rebuilt so as to render the same better adapted for the purposes aforesaid and shall under the like direction from time to time permit the erection of additional buildings.

8. Except as regards any property of the charity which for the time being is registered as a place of meeting for religious worship with the Registrar-General of Births Deaths and Marriages in England and is bonâ fide used as a place of meeting for religious worship and except as regards such other property (if any) of the charity as for the time being by virtue of any provision of the Charitable Trusts Acts 1853 to 1894 is exempt from the operation of those Acts the Trustees shall not make or grant otherwise than with the approval of the Charity Commissioners any sale exchange mortgage or charge of the charity estate or any lease thereof in reversion after more than three years of any existing term or for any term of life or in consideration wholly or in part of any fine or for any term of years exceeding twenty-one years.

9. Subject to the restrictions contained in the last preceding clause hereof it shall be lawful for the Trustees without the necessity of obtaining the consent of the church to raise by mortgage of the property of the charity or of part thereof or by a deposit of the title deeds thereof or of part thereof such sum or sums of money as in the exercise of their discretion they think proper for the purpose of paying off any debt or debts incurred or to be incurred in the erection or completion of the buildings erected or to be erected on the land of the charity and not provided for by voluntary subscriptions.

10. Subject to the said restrictions herein-before contained the Trustees shall whenever required by a special resolution of the church with the consent in writing of the Trustees or their committee or a majority of such committee sell mortgage or demise for any term of years the property of the charity or any part thereof or exchange the same or any part thereof for any other freehold copyhold customary or leasehold premises in

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A.D. 1907. — accordance with the directions of the said church The Trustees shall stand possessed of the moneys arising from any such mortgage sale or exchange and any other moneys which may come to their hands in connexion with the trust premises in the nature of capital after paying all costs and expenses incurred in relation thereto upon trust to lay out and apply the same in or towards the enlargement rebuilding improvement or repair of the said buildings and premises or in or towards the purchase of other premises of any tenure or towards any of the other purposes or objects of the charity in such manner as the said church shall by special resolution direct but so that any premises so purchased or so taken in exchange whether freehold copyhold customary or leasehold shall be situate within twenty miles of the premises now belonging to the charity and shall be held by the Trustees upon the same trusts and subject to the same powers and provisions as are herein declared concerning such premises If any difference shall arise as to whether moneys coming into the hands of the Trustees are capital or income the decision of the Trustees shall be conclusive.

11. Notwithstanding anything herein-before contained if the said church is dissolved or dispersed or (unless the church shall have removed within the meaning of clause 16 hereof) if the regular public worship of God in the said building is discontinued for six calendar months together or if the number of the members of the said church entitled to vote at a special meeting as herein-after provided for shall be reduced to fifteen or under the Trustees may in their discretion but subject to the said restrictions herein-before contained either let or mortgage or sell the trust premises or any part thereof and pay and apply the net proceeds of such letting mortgage or sale remaining after payment of all expenses for such religious purposes not tending to the promulgation of doctrines inconsistent with those herein-before referred to and in such manner as the Trustees shall in their discretion think proper.

12. Upon any mortgage lease sale or exchange purporting to be made in pursuance of any trust or power herein contained no mortgagee lessee purchaser or other person dealing bonâ fide with the Trustees shall be bound or concerned to inquire whether the occasion for executing or exercising such trust or power has arisen or whether any special or other meeting of the said church has been held or as to the competency or regularity of any such meeting or of any requisition or resolution passed or purporting to have been passed thereat or whether the said church has been dissolved or any of the said other events have taken place or (except as regards the said restrictions contained in the 8th clause hereof) otherwise as to the propriety or regularity of any such mortgage lease sale or exchange and notwithstanding any impropriety or irregularity in such mortgage lease sale or exchange the same shall in favour of a purchaser mortgagee lessee or other person as aforesaid (except as regards the last-mentioned restrictions) be deemed to be within the aforesaid trusts or powers and be valid accordingly.

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13. All the trusts powers discretions and authorities hereby given to or vested in the Trustees shall be exerciseable by their committee or a majority of such committee as fully and effectually in all respects as the same might have been exercised by the Trustees. A.D. 1907.

14. The following provisions shall apply to every special meeting of the said church:—

- (A) The meeting shall be convened by the minister or pastor or deacons or committee for the time being of the said church or by the authority of the Trustees or of one-fifth in number of the members of the said church entitled to vote at such meeting by notice announcing the place day and hour of the meeting and the business or matter to be transacted or considered and such notice shall be given at each service held on the premises on the two Lord's days immediately preceding such meeting:
- (B) The meeting shall be fixed for and held not earlier than the Wednesday next following the second of such two Lord's days:
- (C) The only persons who shall be entitled to attend and vote at such meeting shall be those who whether male or female have attained the age of eighteen years and have been members of the said church during at least the six calendar months next preceding the meeting:
- (D) No votes shall be given by proxy but votes may be given by ballot or otherwise as the said church may direct:
- (E) The term "a special resolution of the church" in this scheme means a resolution passed at a special church meeting by a majority consisting of not less than two-thirds of the persons present and entitled to vote and voting on the question before the meeting and the same shall be binding upon all the members of the said church whether present or not at such meeting:
- (F) Except where a special resolution of the church is hereby expressly required a resolution passed at a special church meeting by a simple majority of the persons voting on the question before the meeting shall be binding on all the members of the said church whether present or not at such meeting:
- (G) The proceedings and resolutions of the meeting shall be evidenced by a minute thereof under the hand of the chairman who shall have a casting vote and such minute shall be conclusive evidence that any resolution therein expressed to have been passed was passed at a meeting duly convened and held and by the requisite majority and it shall further be presumed that the person subscribing such minute as chairman was duly appointed to the office.

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15. Except where it is hereby expressly provided that a special resolution of the said church or a resolution of a special meeting thereof is requisite the affairs of the said church and the provisions of this scheme may in all respects be managed and carried out under the direction of the members of the said church at ordinary meetings of the said church to which meetings the provisions of the last preceding clause thereof shall not apply but the same shall be held and regulated according to the ordinary practices and usages of Congregational churches which practices and usages shall also apply to special meetings of the said church subject to the provisions of such last preceding clause hereof.

16. In the event of the removal of the said church to another locality the powers hereby vested in the said church in regard to the trust premises shall not thereby be suspended or in any manner impaired or affected.

17. No trustee shall take or hold any interest in any property belonging to the charity otherwise than as a Trustee for the purposes thereof and no Trustee shall receive any remuneration or be interested in the supply of work or goods at the cost of the charity.

18. The Charity Commissioners may from time to time in the exercise of their ordinary jurisdiction establish schemes for the alteration of any provisions of this scheme as if those provisions had been made by the founder in the case of a charity having a founder.

SCHEDULE.

The Unity of the Godhead as Father Son and Holy Spirit.

The Incarnation Resurrection and Ascension of the Only Begotten Son of the Father in Jesus Christ who is our Propitiatory Sacrifice our Redeemer our Judge the Sole Head of His Church.

The Quickening Indwelling Guiding and Sanctifying of the Holy Spirit.

The revelation of God's Grace to man and of man's duty to God in the Holy Scriptures.

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